

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tiffany Dempsey	Team: Squad #14	CCRB Case #: 201505430	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/30/2015 10:02 AM	Location of Incident: § 87(2)(b) 75th Precinct stationhouse	18 Mo. SOL 12/30/2016	Precinct: 75		
Date/Time CV Reported Wed, 07/01/2015 3:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/01/2015 3:00 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Richard Elliott	1665	941009	075 PCT
2. An officer			075 PCT
3. SGT Mackenson Nelson	05378	944279	075 PCT
4. Officers			075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM William Rivera	23360	923043	075 PCT
2. POM Darwin Ceden	24692	950182	075 PCT
3. POM Nazir Abdul	25172	941303	075 PCT
4. LT Eric Delman	00000	922228	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Richard Elliott	Force: At § 87(2)(b) in Brooklyn, Sgt. Richard Elliott used physical force against § 87(2)(b)	A . Exonerated
B . SGT Richard Elliott	Abuse: At § 87(2)(b) in Brooklyn, Sgt. Richard Elliott threatened § 87(2)(b) with the use of force.	B . Exonerated
C . Officers	Force: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	C . Unfounded
D . An officer	Force: At § 87(2)(b) in Brooklyn, an officer used a chokehold against § 87(2)(b)	D . Unfounded
E . An officer	Force: At § 87(2)(b) in Brooklyn, an officer restricted § 87(2)(b) breathing.	E . Unfounded
F . Officers	Abuse: At § 87(2)(b) in Brooklyn, officers damaged § 87(2)(b) property.	F . Officer(s) Unidentified
G . SGT Mackenson Nelson	Abuse: At the 75th Precinct stationhouse, Sgt. Mackenson Nelson did not process § 87(2)(b) complaint regarding an officer.	G . Substantiated

Case Summary

On June 30, 2015, at approximately 10:02 a.m., EMS and numerous police officers from the 75th Precinct, including Sgt. Richard Elliot, responded to an AIDED case at § 87(2)(b) in Brooklyn, after § 87(2)(b) contacted 911, believing her son, § 87(2)(b) was high. Relatives, § 87(2)(b) § 87(2)(b) and § 87(2)(b) were also present at the location as well. Once at the § 87(2)(b) § 87(2)(b) Sgt. Elliot pushed § 87(2)(b) and threatened § 87(2)(b) with a Conducted Energy Device (CED), also known as a taser (**Allegations A and B**). Officers allegedly used force to bring § 87(2)(b) to the ground, and an officer allegedly placed his knee on § 87(2)(b) neck and restricted § 87(2)(b) breathing (**Allegations C, D and E**). Also, officers allegedly created a hole in the apartment wall while escorting § 87(2)(b) out of the apartment (**Allegation F**). Later, § 87(2)(b) and other relatives, including § 87(2)(b) and § 87(2)(b) § 87(2)(b) visited the 75th Precinct stationhouse where Sgt. Mackenson Nelson of the 75th Precinct did not process § 87(2)(b) complaint regarding Sgt. Elliot (**Allegation G**). No civilians were arrested or summonsed; however, § 87(2)(b) was transported to the hospital for evaluation (Board Review 01).

Mediation, Civil and Criminal History

- § 87(2)(b) this case was unsuitable for mediation.
- As of September 23, 2015, a search with NYC's comptroller's office yielded negative results for a Notice of Claim in regard to the incident (Board Review 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer History

- This is the first complaint filed by § 87(2)(b) § 87(2)(b)
- This is the first CCRB complaint involving § 87(2)(b) (Board Review 03).
- Sgt. Elliot has been a member of service for nine years and there are no substantiated allegations against him. § 87(2)(g)
- Sgt. Nelson has been a member of service for eight years and there are no substantiated allegations against him. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Elliot confirmed pushing § 87(2)(b) and threatening § 87(2)(b) with a taser; § 87(2)(g) Multiple officers, whom § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not consistently describe and/or recall allegedly brought § 87(2)(b) to the ground; § 87(2)(g) § 87(2)(b) could not see which officer was behind him, leaning on his neck and causing his breathing to be restricted. In addition, no other individual witnessed this occur; § 87(2)(g). Similarly, none of the individuals saw which officers, if any, caused a hole to be created in the wall; § 87(2)(g) Sgt. Nelson confirmed writing the command log entry regarding § 87(2)(b) CCRB complaint; § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Recommendations

Allegation A – Abuse of Authority: At § 87(2)(b) in Brooklyn, Sgt. Richard Elliott used physical force against § 87(2)(b)

Allegation B – Abuse of Authority: At § 87(2)(b) in Brooklyn, Sgt. Richard Elliott threatened § 87(2)(b) with the use of force.

According to § 87(2)(b) she stood in front of § 87(2)(b) who was agitated at the sight of police officers and high on K2, and attempted to calm him down while EMTs assessed him. § 87(2)(b) admitted that she refused Sgt. Elliot's command to move away from § 87(2)(b) and alleged that he grabbed her arm and pushed her away from § 87(2)(b) (Board Review 6 and 7). § 87(2)(b) and § 87(2)(b) § 87(2)(b) confirmed Sgt. Elliot pushed § 87(2)(b) (Board Review 4, 5, 8, and 12).

§ 87(2)(b) and EMT § 87(2)(b) all consistently stated that § 87(2)(b) became outraged by Sgt. Elliot's interaction with § 87(2)(b) and yelled and cursed at Sgt. Elliot. § 87(2)(b) and § 87(2)(b) § 87(2)(b) also yelled at Sgt. Elliot. § 87(2)(b) and EMT § 87(2)(b) added that § 87(2)(b) stood up, in between Sgt. Elliot and § 87(2)(b) § 87(2)(b) and EMT § 87(2)(b) added that § 87(2)(b) also threatened to kill Sgt. Elliot (Board Review 4, 5, 6, 7, 9, and 12).

According to § 87(2)(b) and § 87(2)(b) Sgt. Elliot and officers then attempted to handcuff § 87(2)(b) and instructed him to stop moving. Sgt. Elliot removed a taser from his holster and pointed it toward § 87(2)(b) § 87(2)(b) alleged that Sgt. Elliot said he was going to tase § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) stated that the officers were then able to handcuff § 87(2)(b) without tasing him (Board Review 4, 5, 6, 7, and 12). § 87(2)(b) who admitted to being disorientated and unconscious for moments during the incident, did not allege that a taser was pointed at him or that he was threatened with a taser (Board Review 8).

EMT § 87(2)(b) stated that officers grabbed § 87(2)(b) arms and instructed him to put his hands behind his back. § 87(2)(b) refused and flailed his arms. Sgt. Elliot then placed his hand on his taser and stated that he would tase § 87(2)(b) The officers then backed § 87(2)(b) into a corner as he pushed and tried to get away from officers, and then successfully handcuffed him without tasing him (Board Review 9).

Sgt. Elliot confirmed pushing § 87(2)(b) He testified that he pushed § 87(2)(b) for her own safety because she was standing too close to § 87(2)(b) who was agitated and aggressive, and interfering with the EMTs' ability to assess § 87(2)(b) Sgt. Elliot also confirmed pointing his taser after § 87(2)(b) resisted being placed in handcuffs and refused to obey multiple commands. Sgt. Elliot denied telling § 87(2)(b) that he was going to tase him; however, he stated that he shouted, "Taser! Taser! Taser!" to alert everyone that he removed his taser. Sgt. Elliot removed the taser because he did not believe the officers would be able to handcuff § 87(2)(b) without escalating their level of force, and Sgt. Elliot only intended to tase § 87(2)(b) if he did not become compliant. § 87(2)(b) became compliant once he saw the taser (Board Review 10).

According to Patrol Guide Procedure 203-11, an officer must use minimum necessary force at the scene of a police incident (Board Review). According to Patrol Guide Procedure 212-117, CEDs should be used only against persons who are actively physically resisting, exhibiting signs of physical aggression, or to prevent individuals from physically injuring themselves or other persons (Board Review 13).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be **Exonerated**.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **Exonerated**.

Allegation C – Force: At § 87(2)(b) in Brooklyn, officers used physical force against

§ 87(2)(b)

Allegation D – Force: At § 87(2)(b) in Brooklyn, an officer used a chokehold against

§ 87(2)(b)

Allegation E – Force: At § 87(2)(b) in Brooklyn, an officer restricted § 87(2)(b) breathing.

According to § 87(2)(b) while attempting to handcuff § 87(2)(b) multiple officers grabbed § 87(2)(b) and pushed him on the ground (Board Review 4 and 5). § 87(2)(b) confirmed being brought to the ground, but did not recall how he was taken to the ground. § 87(2)(b) stated that once on the ground, an officer immediately placed his knee on the back and side of § 87(2)(b) neck, causing § 87(2)(b) breathing to be restricted (Board Review 8). § 87(2)(b) stated that once on the ground, Sgt. Elliot turned § 87(2)(b) onto his stomach while Sgt. Elliot's knees remained on the ground. Multiple officers then handcuffed § 87(2)(b)

During her initial phone statement to the CCRB, § 87(2)(b) stated that § 87(2)(b) remained seated during the entire incident; however, during her CCRB interview, she stated that § 87(2)(b) was brought to the ground while being handcuffed. She did not allege that an officer knelt § 87(2)(b) or restricted his breathing (See 245, Board Review 6 and 7). § 87(2)(b) § 87(2)(b) and EMT § 87(2)(b) stated that § 87(2)(b) was not brought to the ground during the handcuffing process (Board Review 9 and 12).

Sgt. Elliot testified that although § 87(2)(b) initially resisted arrest, once § 87(2)(b) saw the taser, § 87(2)(b) became complainant, agreed to be handcuffed and sat down. § 87(2)(b) was seated either on the ground or in a chair while he was handcuffed. § 87(2)(b) did not lay on the ground at any point and no officer knelt § 87(2)(b) on the neck or restricted his breathing (Board Review 10).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegations C, D and E be Unfounded.**

Allegation F – Abuse of Authority: At § 87(2)(b) in Brooklyn, officers damaged § 87(2)(b) property.

According to § 87(2)(b) and § 87(2)(b) a hole was created in the hallway while officers escorted § 87(2)(b) out of the apartment (Board Review 14). However, neither of them saw the hole being created, or knew whether § 87(2)(b) or officers created the hole or who caused the hole to be created. § 87(2)(b) added that § 87(2)(b) resisted while being escorted out of the apartment (Board Review 4, 5, 6 and 7). Additionally, § 87(2)(b) § 87(2)(b) and EMT § 87(2)(b) stated that the officers did not have any difficulty while escorting § 87(2)(b) out of the apartment. § 87(2)(b) did not have recollection of how he was escorted from the house (Board Review 9 and 12).

Sgt. Elliot testified that § 87(2)(b) walked slowly and hesitated while being escorted out of the apartment. Sgt. Elliot did not recall § 87(2)(b) body or his own body hitting off a wall, but stated that it was possible they had. Sgt. Elliot was not aware that a hole was created in the wall (Board Review 10).

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **Officer Unidentified.**

Allegation G – Abuse of Authority: At the 75th Precinct stationhouse, Sgt. Mackenson Nelson did not process § 87(2)(b) complaint regarding an officer.

According to § 87(2)(b) and § 87(2)(b) § 87(2)(b) in the hallway of the 75th Precinct stationhouse, § 87(2)(b) informed Sgt. Nelson of the incident involving § 87(2)(b) and Sgt. Elliot (Board Review 4, 5, 6, 7, and 12).

According to § 87(2)(b) she informed Sgt. Nelson that she wanted to file a complaint against Sgt. Elliot, and in response, Sgt. Nelson pointed to a poster that contains both the telephone numbers to the CCRB and to a lawyer. Allegedly, Sgt. Nelson told § 87(2)(b) to contact the CCRB, stating the CCRB would handle the complaint faster than officers at the stationhouse. § 87(2)(b) said Sgt. Nelson also gave her a complaint number, but she did not recall or write down this number. She said that neither Sgt. Nelson nor § 87(2)(b) completed any paperwork in regard to the complaint. § 87(2)(b) explained that she was not satisfied with obtaining the CCRB's telephone and had wanted Sgt. Nelson to write down her complaint (Board Review 6 and 7).

§ 87(2)(b) corroborated that § 87(2)(b) told Sgt. Nelson she wanted to file a complaint, and that Sgt. Nelson gave her a complaint number and told her he would complete paperwork. § 87(2)(b)

§ 87(2)(b) also said Sgt. Nelson pointed to a poster containing the CCRB's information and informed § 87(2)(b) she could contact the CCRB regarding the incident (Board Review 12).

§ 87(2)(b) recalled that § 87(2)(b) had not requested to file a CCRB complaint, and had only requested the phone number for a lawyer.

Sgt. Nelson did not have any recollection of interacting with § 87(2)(b) but after reviewing the command log, he confirmed that he made an entry regarding a CCRB complaint filed by § 87(2)(b) against Sgt. Elliot (Board Review 16). The entry indicates the complaint was within the jurisdiction of the CCRB, but no CCRB complaint number is listed in the entry. Sgt. Nelson stated that, because he made a command log entry, he believed some type of action was taken in regard to the complaint; however, he did not recall what action he took. Sgt. Nelson said he typically gives a civilian all the options about how to file a complaint and allows them to choose how to proceed. He said a complaint form is not always written, depending on the wishes on the civilian, such as in instances where the civilian only wants a telephone number or to hear how to file a complaint. Sgt. Nelson did not recall whether he contacted IAB or the CCRB in regard to § 87(2)(b) complaint. He said an officer is not required to contact the CCRB when taking a civilian complaint (Board Review 11).

The 75th Precinct confirmed that no civilian complaint report was generated in regard to § 87(2)(b) complaint (Board Review 15). Det. McFarlen with the IAB/CCRB Liaison Unit confirmed that no officer reported the complaint to IAB (See IAs). Also, as of September 23, 2015, no officer contacted the CCRB in regard to the complaint.

Patrol Guide Procedure 207-31 (Board Review 13) states that civilian complaints against members of service may be made at any stationhouse or office of the NYPD, and that officers are required to process these complaints. As part of the required steps in processing such complaints when a civilian is present at the stationhouse, the officer receiving the complaint is to interview the civilian, have them fill out a Civilian Complaint Report in their own handwriting, prepare a Civilian Complaint Report, inform the CCRB intake unit of the complaint immediately by telephone and obtain a CCRB complaint number, and give a copy of the report to the civilian. The investigating supervisor is to make a command log entry in regard to the complaint which includes the CCRB complaint serial number. When civilians are present in person at an office of the NYPD, but do not wish immediately make a complaint, officers are required to provide the civilian with the first copy of the civilian complaint, and advise the civilian that the complaint may be delivered in person, taken over the phone or sent by mail to any office of the NYPD. In addition, officers must also provide the civilian with the telephone number to the CCRB intake unit, and make a command log entry in regard.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) [Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted] Therefore, it is recommended that **Allegation G**
be **Substantiated**.

Squad 14:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date